Memorandum of Understanding

NAMA Medical (NAMA CRO) - King Saud University (KSU)

19-DEC-2024

Memorandum of Understanding

Parties

NAMA Medical (NAMA CRO) of Prince Fawaz bin Abdulaziz St, Ar Rabwah, Riyadh 3013, Saudi Arabia.

King Saud University (KSU) of Riyadh 11451, Saudi Arabia

Background

A. This document sets out the arrangements applying to the delivery of shared services by **NAMA Medica**l to **King Saud University (KSU)** for the period 01-JAN-2025 to 31-DEC-2030.

B. The parties enter this MoU with the understanding that it shall not be extended beyond 31-DEC-2030. If services are required beyond 31-DEC-2030, the parties will negotiate a new agreement.

C. Where, **King Saud University (KSU)** is a public university in Riyadh, Saudi Arabia. Established in 1957 by King Saud bin Abdulaziz.

D. Where, **NAMA** is a Contract Research Organization (CRO) based in Saudi Arabia, focusing on clinical research services across various therapeutic areas. With extensive expertise in clinical trials, regulatory submissions, data management, and compliance with both local and international guidelines.

The shared services to be exchanged by **NAMA and KSU** are set out in Schedule 1.

General terms

1 Aims

(a) The aim of this MoU is to achieve efficient and cost-effective delivery of shared services.

(b) The parties shall have open and ongoing communications in relation to the MoU and the delivery of the shared services.

(c) This MoU does not create legally enforceable rights or obligations for either party.

2 Principles

The parties shall enter into the MoU on the basis that:

(a) the current model of service delivery will apply to the delivery of shared services, unless varied as agreed between the parties to the MoU;

(b) the parties shall have open and ongoing communications in relation to the MoU and the delivery of the shared services; and

(c) each party will act to ensure decisions that impact the services, operations and costs of the other party are communicated in advance and the parties will undertake to ensure these decisions do not adversely impact the services, operations and costs of the other party.

The Parties may modify or develop further principles as part of ongoing MoU management.

3 Responsibilities

3.1 NAMA responsibilities

NAMA will:

(a) be responsible for supporting KSU Bioequivalence unit with appropriate resources including knowledge, manpower and fund raising required for accreditation by SFDA as BE unit complementary with NAMA CRO clinical unit.

(b) supervise technical Bio-analytical operations with KSU bioanalytical team in KSU bioequivalence unit for sample Bio-analysis in regards to NAMA CRO accredited Bioequivalence unit studies.

(c) provide the clinical unit for Bioequivalence study and collection of the bio samples and shipping to KSU Bioequivalence unit for bio-analysis under controlled measures and conditions.

(d) perform regular Quality Assurance internal auditing in coordination with KSU quality team for KSA bioequivalence unit.

(e) ensure that appropriate operations approvals and controls have been exercised in line with relevant policies, delegations and statutory requirements in regards to NAMA CRO accredited Bioequivalence unit studies.

(f) maintain and substantiate all claims for costs reimbursement with appropriate records in regards to NAMA CRO accredited Bioequivalence unit studies.

(g) ensure services provided under the MoU are transitioned to KSU resources for further incorporation into Bioequivalence Bio-analytical services.

(h) Provide CRO services for investigator-initiated studies in KSU.

(i) Provide Clinical Research Center services for KSU affiliated studies, investigators and researchers.

3.2 KSU responsibilities

KSU will:

(a) provide appropriate resources including bio-analytical facility and equipment (BE unit), manpower and utilities needed to deliver the shared bioequivalence services.

(b) provide general assistance (including provide information) to NAMA that is reasonably required to deliver the required services related to NAMA CRO accredited Bioequivalence unit studies.

(c) not, without prior consultation with and the agreement of NAMA, take actions (including enter into any arrangement with a third party) that would materially affect the delivery of the shared services, including anything that would result in NAMA incurring additional costs to provide the shared services;

(d) maintain and substantiate all claims for costs reimbursement with appropriate records in regards to NAMA CRO accredited Bioequivalence unit studies.

(e) ensure that appropriate approvals and controls have been exercised in line with relevant policies, delegations and statutory requirements in regards to NAMA CRO accredited Bioequivalence unit studies.

(f) ensure services provided under the MoU are transitioned to NAMA resources for further incorporation into Bioequivalence reports.

(g) Introduce NAMA CRO services to affiliated investigators and researchers.

(h) Introduce NAMA Clinical Research Center services to affiliated investigators and researchers.

3.3 Other responsibilities of the Parties

Both Parties will:

(a) notify the other Party as soon as practicable of any issues or incidents that it becomes aware of which would affect the provision of the shared services;

(b) respond to the other Party's requests or queries (including the provision of information) to the best of its knowledge, and within a reasonable period;

(c) use best efforts to resolve any issues or concerns of the other Party in relation to the shared services or the management of this MoU;

(d) take responsibility to avoid any conflicts of interest and raise with the other Party where necessary to manage any such conflicts;

(e) be subject to their own legal and probity obligations which, to the extent of any conflict, will take precedence over this MoU; and

(f) make available appropriate personnel to attend any meetings or discussions with the other party at reasonable notice. The personnel should be informed about the subject matter of the meetings or discussions.

4 Privacy and Personal Information

4.1 The Parties will only provide each other with personal or health information that is necessary, and only use that personal or health information for the purposes of delivering the shared services and in accordance with *the Saudi Personal Data Protection Law, Privacy and Personal Information Protection Act 1998 and the Health Records and Information Privacy Act 2002.*

4.2 Each Party is required to take security safeguards as are reasonable in the circumstances to protect the provided personal and health information against loss, unauthorised access, use, modification or disclosure and against all other misuse.

4.3 At the request of a Party, the other Party will return or securely destroy any personal or health information provided to it for the delivery of shared services.

4.4 In collecting any personal or health information that could be provided to the other party for the provision of shared services. **NAMA and KSU** will take reasonable steps to seek the individual's consent to provide that information to its service providers if it is necessary to disclose that information for services to be provided.

5 Ongoing MoU management

5.1 Ongoing review and discussion

The Parties will agree to meet at Executive level prior to the end of each year to review and discuss the existing and future delivery of shared services under this MoU.

The Parties will agree to hold regular officer-level meetings to ensure a smooth handover process between **NAMA** and **KSU** at the end of the MoU on **31-Dec-2030,** unless extension agreement is in place.

5.2 Contracts with external suppliers

(a) If a party wishes to end any shared services that are covered by contracts with external suppliers, **NAMA and KSU** will review the contract to determine whether the contract, or the level of services provided under the contract, can be varied or terminated (in whole or in part).

(b) The Parties acknowledge that:

(i) **NAMA and KSU** are committed to the contracts it has entered into in relation to some of the shared services; and

(ii) **NAMA and KSU** may not be able to vary or terminate (in whole or in part) those contracts, or the level of services provided under those contracts, without paying significant amounts of compensation or experiencing adverse outcomes.

(c) The Parties will, as part of the ongoing MoU management, consult each other in relation to:

(i) any renewals, expiry, or termination of shared services that are covered by contracts with external suppliers;

(ii) their plans in relation to those shared services that are covered by contracts with external suppliers, e.g., to renew with the existing supplier, go to market, provide the services internally, or separately procure the services; and

(iii) the impact of the Parties' plans in relation to those shared services on the costs.

(d) If **NAMA** undertakes a procurement process in relation to shared services that are or will be provided by external suppliers, it will consult **KSU** in relation to its requirements and provide opportunities for a representative to be involved in the procurement process.

5.3 Request for Shared Services and support

Any requests or support queries in relation to the delivery of the shared services will be raised through channels nominated from time to time.

5.4 Issues and escalation

Any issues in relation to the delivery of the shared services shall be raised through channels nominated from time to time.

6 Term and termination

6.1 The MoU will commence on and from **01-JAN-2025** and continue until **31-DEC-2030** or until:

(a) there are not any shared services to be delivered by **NAMA** and **KSU**;

(b) the Parties enter into an arrangement that expressly supersedes this MoU.

6.2 Both Parties acknowledge that this MoU, if signed by the parties after **01-JAN-2025**, applies; from **01-JAN-2025**, as if it was signed by the Executives on that date.

7 Notices

7.1 Receipt of Notice

A notice or other communication connected with this MoU will be in writing and sent by email to the email address of the addressee.

7.2 NAMA ‘s details for service

Name:	NAMA MEDICAL
Attention:	Dr. Theeb Ayedh Alkahtani, NAMA CEO
Address:	Prince Fawaz Bin Abdulaziz St, Ar Rabwah, Riyadh 3013], Saudi Arabia
Email address:	theeb@integrative.sa

7.3 Change of details

A Party may change its details for service by giving notice of that change to the other Party.

8 Interpretation

In this MoU, unless the contrary intention appears:

(a) a reference to:

(i) the singular includes the plural and the plural includes the singular;

(ii) a clause, annexure or schedule is a reference to a clause in or annexure or schedule to this MoU;

(iii) a document (including this MoU) includes any variation or replacement of it;

(iv) a statute, ordinance, code or other law includes a regulation or other statutory instrument made or issued under it and consolidations, amendments, re-enactments or replacements of any of them; and

(b) the words **include**, **including**, **for example** or **such as** when introducing an example, do not limit the meaning of the words to which the example relates to the example or to examples of a similar kind;

(c) where a word or expression is given a particular meaning, other parts of speech and grammatical forms of that word or expression have a corresponding meaning; and

(d) headings and any index are for convenience only and do not form part of this MoU or affect its interpretation.

9 General

9.1 Further assurance

Each Party must promptly at its own cost do all things (including executing and, if necessary, delivering all documents) necessary or desirable to give full effect to this MoU.

9.2 Variation

An amendment or variation to this MoU is not effective unless it is in writing and signed by both Parties.

9.3 Assignment

A Party cannot assign all or any of its responsibilities under this MoU without the prior written consent of the other Party.

9.4 No right of set off

Except as expressly stated in this MoU, a Party has no right of set-off against a payment due to another Party.

Signed on behalf of the **NAMA** by:

Signature of delegate	Name of delegate	Position
	Dr. Theeb Ayedh Alkahtani	CEO NAMA CRO

Signed on behalf of the **KSU** by:

Signature of delegate	Name of delegate	Position